



MINED LAND RECLAMATION BOARD
Department of Natural Resources

1313 Sherman Street, Room 723
Denver, Colorado 80203

Telephone: 839-3567

DEVELOPMENT AND EXTRACTION MINING PERMIT

THIS PERMIT is issued this 26th day of October, 1978 by the Mined Land Reclamation Board, Department of Natural Resources, State of Colorado.

W I T N E S S E T H :

WHEREAS, Sterling Sand & Gravel Co. desires to conduct a(n) open mining operation, known as Johnson Pit #3, for the purpose of extracting open mined sand and gravel

WHEREAS, on October 7, 1977, Sterling Sand & Gravel Co. "FILED" an application, a reclamation plan and map, and the required fee, as required by law; and

WHEREAS, on October 26, 1978, the Mined Land Reclamation Board approved Sterling Sand & Gravel Co. application and set bond; and

WHEREAS, on October 26, 1978, the Mined Land Reclamation Board accepted surety submitted by Sterling Sand & Gravel Co. and such date shall be considered the date of issuance of the permit and the anniversary date for all other purposes; and

WHEREAS, the Mined Land Reclamation Board has made a finding, for the purposes of issuing this permit, that:

- 1) the application complies with the requirements of the Colorado Mined Land Reclamation Act and all applicable local, state and Federal laws; and,
- 2) the operation will not adversely affect the stability of any significant, valuable, and permanent man-made structures located within two hundred feet of the affected land, except where there is an agreement between the operator and the persons having an interest in the structure that damage to the structure is to be compensated for by the operator; and,
- 3) the proposed mining operations and reclamation can be carried out in conformance with the requirements of C.R.S. 1973, 34-32-116, as amended (1976 Sess. Laws H.B. 1065); and

WHEREAS, for the purposes of issuing this permit, the operator has made a satisfactory showing to the Board that he will employ during and after his open mining operations procedures reasonably designed to minimize as much as practicable the disruption from the open mining operations and will provide for the rehabilitation of the affected land through the rehabilitation of plant cover, soil stability, water resources, and other measures appropriate to the subsequent beneficial use of such mined and reclaimed lands; and that in the event of the failure of his proposed reclamation plan, he will take whatever measures which may be necessary in order to assure the success of reclamation of the lands affected by his open mining operations; and,

WHEREAS, for the purposes of issuing this permit, a copy of the application approved by the Mined Land Reclamation Board of the State of Colorado is attached to this permit and thereby becomes a part of the terms hereof.

NOW, THEREFORE, pursuant to the authority set forth in the Colorado Mined Land Reclamation Act, Article 32 of Title 34, C.R.S. 1973, as amended, (1976 Sess. Laws H.B. 1065) the Mined Land Reclamation Board of the State of Colorado hereby issues a life of the mine permit to Sterling Sand & Gravel Co. to engage in open mining for the purpose of extracting open mined sand & gravel on the following parcel of ground, to wit:

An 8 Acre tract contained in a portion of Section 3, Township 7 North, Range 69 West of the 6th P.M., Larimer County, State of Colorado

as indicated in Exhibit(s) A & C of the permit file, subject to the following special conditions:

1. During the course of mining operations, Sterling Sand & Gravel Co. shall not allow the total disturbed acreage to exceed 8 acres, nor the annual extraction of mineral and overburden to exceed 70,000 tons.
2. Sterling Sand & Gravel Co. agrees to be bound by all Rules and Regulations of the Mined Land Reclamation Board, and by all provisions of the 1976 Mined Land Reclamation Act, in compliance with each and every provision thereof, as an express condition of this permit.
3. Any lands included in this permit which may have been previously mined without a permit are included solely for the purpose of obtaining a reclamation plan and bonding coverage for such lands. Such inclusion shall not validify any mining previously conducted without a permit which may be punishable under CRS 1973, 34-32-113(2) & CRS 1973, 34-32-123 & 124, as amended.

This permit is issued subject to all requirements of the Colorado Mined Land Reclamation Act and all rules, regulations and standards now in force and any which may in the future be promulgated by the Mined Land Reclamation Board, and this permit may be revoked or suspended for noncompliance with the Act and/or such rules, regulations and standards.

Dated at Denver this 31st
day of October, 1978

MINED LAND RECLAMATION BOARD

By 
